To: Rachel Weber

From: Bryton Bergren

Date: Oct. 30, 2026

Subject: Story Proposal: Eligibility lawsuits and the impact on Iowa State Athletics.

The story I am proposing is a story on college athletics and the countless athletes who are suing the NCAA for injunctions that would grant them a fifth year of eligibility. The problem and impact of this is how all the different courts are handling the problem and the inconsistency of the results. These countless injunctions are leaving college programs wondering what to do with roster spots, scholarships and rotations.

Background Information:

There are almost 60 active lawsuits that involve 322 former college athletes. A lot of them are high-level athletes who could shake up their sport if they are allowed to come back. The problem with a lot of these cases are some of the athletes had turned pro meaning they should have lost their college eligibility but are getting injunctions to fight against that rule. This problem is stemming from the new rule implemented by the NCAA, often called the "5 for 5" rule, but that's not totally true. This new rule is age-based and centers on the student-athlete's age when they first enroll in college. The rule states an athlete's five-year eligibility period starts with whichever is earlier of these two: your initial full-time college enrollment the first academic term when the student-athlete first enrolls full time and attends class at any college or university or an age-based trigger, which would be immediately following the athlete's 19th birthday if the birthday is before September 1st. If the athlete's birthday is on the 1st or after, the period of eligibility begins at the start of the subsequent academic year.

Why Relevant to Iowa State:

This idea is relevant to Iowa State because long-time Iowa State guard Tamin Lipsey was just granted a fifth year of eligibility due to an Indiana federal court preliminary injunction in an eligibility lawsuit against the NCAA.

The news value and attributes this will address:

- Current Relevance: This is happening live, affecting winter sports with many star-level players being able to play due to the lawsuits.
- Proximity: This nationwide legal precedent lands right in Ames, with local star Tamin Lipsey getting a fifth year

- Impact: How will this affect the job of coaches and the construction of rosters now and for the future of the sport?

The 5 W's and H:

- Who: Tamin Lipsey and other athletes who are pursuing or have been granted a fifth year; head coaches who are dealing with the uncertainty of what will happen with their players and NCAA legal representatives.
- What: Federal and state court preliminary injunctions that are overriding NCAA eligibility.
- Where: There are cases in Ohio, Washington, Kentucky and more. Also, college campuses all around the nation, including Iowa State.
- When: Began in July and August 2026 when the new rule was put into place and is fully coming into effect now that the winter sports are starting.
- Why: Athletes claim that it harms their earning potential, and in Lipsey's case, that he competed against and for minutes against players who were older than what a 5-year clock player would be.
- How: By obtaining temporary restraining orders and preliminary injunctions through federal and state courts.

Sources:

- Mark Benda: Former Cyclone athlete: 712-621-1484
- Marvin Seiler: Former Cyclone athlete
- Tamin Lipsey: Current Cyclone athlete who is playing on an injunction
- Chris Williams: Iowa State Sports Media reporter and publisher of Cyclone Fanatics
- Jared Benko: New Iowa State AD
    - Or anyone in the athletic department who would have any part in dealing with the Lipsey scenario.

https://www.espn.com/college-football/story/_/id/49815660/college-football-2026-louisiana-decision-five-years

https://www.ncaa.org/eligibility-center/division-i-and-division-ii-age-based-eligibility-rules/

https://sports.yahoo.com/articles/judge-grants-class-wide-injuction-003120692.html